

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Julia Sapienza	Team: Squad #07	CCRB Case #: 202204404	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 07/01/2022 12:40 AM	Location of Incident: 75th Precinct stationhouse	18 Mo. SOL 1/1/2024	Precinct: 75		
Date/Time CV Reported Fri, 07/22/2022 3:00 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 07/06/2022 11:45 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Christina Oconnor	05510	939832	075 PCT
2. PO Marc Pierre	04597	970773	075 PCT
3. PO Javier Mora	16395	957870	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Kevin Pereira	25726	964208	075 PCT
2. PO Alfredo Varela	11290	968860	075 PCT
3. PO Joseph Ancona	00914	966435	075 PCT
4. PO Paul Salvodon	26684	965498	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A. PO Marc Pierre	Abuse: Police Officer Marc Pierre failed to provide § 87(2)(b) with a business card.	
B. PO Javier Mora	Abuse: Police Officer Javier Mora failed to provide § 87(2)(b) with a business card.	
C. PO Christina Oconnor	Force: Police Officer Christina O'Connor pushed § 87(2)(b)	
D. PO Christina Oconnor	Discourtesy: Police Officer Christina O'Connor spoke discourteously to § 87(2)(b)	

Case Summary

On June 30, 2022, § 87(2)(b) called 911, and was transferred to the Internal Affairs Bureau, to report this incident. The CCRB received this complaint on July 6, 2022 (**Board Review 1**).

On June 30, 2022, § 87(2)(b) was assaulted and called the police to report the crime. § 87(2)(b) went to the 75th Precinct stationhouse in Brooklyn to speak to a detective about the assault at approximately 10:30 p.m. § 87(2)(b) spoke to a detective, who would not take her complaint about the assault. The detective asked § 87(2)(b) to leave the stationhouse. § 87(2)(b) left the stationhouse and called 911 and was transferred to IAB to make a complaint about the detective she spoke to. § 87(2)(b) entered the station house while on the call with IAB in order to obtain the detective's name. Police Officer Marc Pierre of the 75th Precinct arrested her for trespassing. Upon her release, § 87(2)(b) received a C-Summons written by PO Pierre. § 87(2)(b) was escorted out of the station house by PO Pierre and Police Officer Christina O'Connor of the 75th Precinct. After PO Pierre took the handcuffs off § 87(2)(b) she asked the officers who were present for their business cards, which included Police Officer Javier Mora of the 75th Precinct. None of the officers provided their business cards (**Allegation A**, § 87(2)(g) **Allegation B**, § 87(2)(g) PO Pierre and PO O'Connor told § 87(2)(b) to leave and she continued to ask for the officers' information. PO O'Connor pushed § 87(2)(b) out of the station house (**Allegation C, Force**, § 87(2)(g) and told her to "get the fuck out," (**Allegation D, Discourtesy**, § 87(2)(g) The CCRB obtained body-worn camera footage from Police Officer Joseph Ancona (**Board Review 2 & 21**), Police Officer Alfredo Varela (**Board Review 3**), Police Officer Kevin Pereira (**Board Review 4**), Police Officer Paul Salvodon (**Board Review 5**), and PO Pierre (**Board Review 6 & 7**) of the 75th Precinct.

Findings and Recommendations

Allegation (A): Abuse of Authority: Police Officer Marc Pierre failed to provide § 87(2)(b) with a business card.

Allegation (B): Abuse of Authority: Police Officer Javier Mora failed to provide § 87(2)(b) with a business card.

Allegation (C) Force: Police Officer Christina O'Connor pushed § 87(2)(b)

Allegation (D) Discourtesy: Police Officer Christina O'Connor spoke discourteously to § 87(2)(b)

In her statement to the CCRB (**Board Review 8**), § 87(2)(b) said that she was assaulted by a man outside of a hotel on Sheffield Avenue in Brooklyn. The man hit § 87(2)(b) with a bottle, took her purse and threw it over a fence, and pulled a gun on her. § 87(2)(b) said that she was so scared that she did not call 911 and just walked straight to the 75th Precinct stationhouse. When she was there, § 87(2)(b) spoke to the front desk, and they brought her upstairs to talk to a detective. The detective was a bald white man with a long brown beard and a heavy build. § 87(2)(b) was upset about the assault and was crying while telling him about it. After a few seconds the detective said, "I'm done," and told § 87(2)(b) to leave the stationhouse. § 87(2)(b) was escorted out of the building.

When § 87(2)(b) was outside, she called 911 to make a complaint about the detective. 911 transferred her to IAB, and an officer asked § 87(2)(b) which detective she wanted to make a complaint about. § 87(2)(b) did not know the detective's name, so she went back into the stationhouse to ask someone. Once § 87(2)(b) was inside the station house, two officers said to her, "didn't we tell you to get out? Now you're going to jail" § 87(2)(b) tried to ask these officers what the detective's name and badge number was. One of the officers, a woman named O'Connor, grabbed § 87(2)(b) arm and the other officer, a Black man, grabbed her phone. § 87(2)(b) knew O'Connor's name and badge number from looking at it while she grabbed her. The officers put § 87(2)(b) in jail for trespassing. § 87(2)(b) was in the jail cell for a few hours before she was let out with

a summons. § 87(2)(b) asked again for the detective's name and badge number and no officer told her. § 87(2)(b) developed bruises on her arm from PO O'Connor's grip.

PO Varela's body-worn camera footage (**Board Review 3**) shows that § 87(2)(b) called the police after she was assaulted outside of a hotel at § 87(2)(b) in Brooklyn. The officers arrive on scene at approximately 10:15 p.m. From 02:15 mark to the 09:12 mark the officers ask § 87(2)(b) about what happened. She says that a light-skinned man wearing brown shorts in a silver Acura hit her with a bottle and pulled a black semiautomatic gun on her, stole her bag, and threw it over a fence. § 87(2)(b) says that the man was involved in a stabbing earlier that day, where a young girl, who § 87(2)(b) says is a prostitute, was stabbed. The officers ask who the people involved in the stabbing are and § 87(2)(b) starts to cry and say she does not know. § 87(2)(b) explains that she was an eyewitness to the stabbing, and that's why the man pulled a gun on her. § 87(2)(b) shows the officers the bruises on her arm from getting hit. At the 16:55 mark, the officers ask § 87(2)(b) if she'd like to speak with a detective back at the precinct. She says yes and PO Varela and his partner drive § 87(2)(b) to the station house. They arrive at the station house at 10:36 p.m.

PO Pierre's first body-worn camera footage (**Board Review 6**) starts at 11:23 p.m. He is inside the lobby of the 75th Precinct stationhouse. At the 00:34 mark, PO Pierre turns around and goes into the vestibule area of the front door. § 87(2)(b) is standing in the vestibule area, talking on the phone. PO Pierre takes her right wrist and PO Salvodon takes her other arm. PO Pierre takes § 87(2)(b) by her bicep and leads her into the station house. At the 01:03 mark § 87(2)(b) says, "he just asked me for the name. That's why he's on the phone." The officers bring § 87(2)(b) to the desk. She says, "all I was doing, 'cause he asked me for his name, sir." She says she was on the phone with IAB. § 87(2)(b) says that the reason she came in was to ask for the detective's name. At the 01:50 mark, § 87(2)(b) says that earlier, she had called the police because of the stabbing. She spoke to the officers on scene and the people who did the stabbing were watching her, and that was why she was assaulted earlier. § 87(2)(b) describes the situation and says that she was hit with a bottle, pistol-whipped, and that the man took her bag and threw it over a fence, and that's when she called the police. She says that the detective was upset about her being upset but that she did nothing wrong but try to save this girl that got cut up. § 87(2)(b) says that she was on the phone and the man wanted the name of the detective. She said she didn't do anything wrong and that she was violated because she was cooperating. PO Henzi takes § 87(2)(b) to a cell.

PO Pierre's second body-worn camera footage (**Board Review 7**) starts at 12:38 a.m. on July 1, 2022. It shows § 87(2)(b) being escorted from the cells and out of the stationhouse by PO O'Connor and PO Pierre. At the 00:56 mark, PO O'Connor is pulling § 87(2)(b) by her left bicep. PO Mora opens the door to the vestibule area for PO O'Connor. At the 01:14 mark PO Pierre tells § 87(2)(b) she's been issued a C-summons. At the 01:25 mark § 87(2)(b) tells the officers she needs all of their cards. She says to PO O'Connor, "I already got you, 5510" They remove the handcuffs from her. At the 01:44 mark § 87(2)(b) asks, "now what?" and PO Pierre tells her that now she leaves. § 87(2)(b) says she needs the officers' information. PO Pierre says the information is in her property bag. § 87(2)(b) continues to ask for information. At the 01:58 mark PO O'Connor approaches § 87(2)(b) who is outside the stationhouse and asking for information, but not making any motions with her body, and says, "this is what got you arrested in the first place, now get the fuck out." PO O'Connor places her left hand on § 87(2)(b) right forearm and pushes her away. As a result of the push, § 87(2)(b) moves backwards. The officers shut the door of the station house. § 87(2)(b) asks why she can't get anybody's information. PO O'Connor turns and walks back into the station with PO Pierre and PO Morra. PO O'Connor says "next time can you bosses just EDP her?"

In his statement to the CCRB (**Board Review 9**), PO Pierre said that earlier that day, § 87(2)(b) had arrived with officers, but PO Pierre did not know why. Later, PO Pierre's supervisors told him that § 87(2)(b) was recording inside the station house and was being removed from the station house. They told PO Pierre to not let her back inside. PO Pierre does not remember which supervisors instructed him to do this. § 87(2)(b) tried to enter the station house and was very irate.

PO Pierre then issued § 87(2)(b) a criminal summons and lodged her. When she was being released, he gave her a bag of her belongings which included the summons. PO Pierre said that he felt that § 87(2)(b) behavior during the release was unpredictable, due to her yelling and moving back and forth. PO Pierre said that for his own safety, because of this unpredictable behavior, he did not engage with her any further to merely provide her a business card. PO Pierre also felt that because his name was on the summons he provided her with, he did not need to give § 87(2)(b) a business card as well.

In his statement to the CCRB (**Board Review 10**), PO Mora said that he was not involved in this incident and was mostly standing off to the side while PO Pierre and PO O'Connor were releasing § 87(2)(b). When shown PO Pierre's body-worn camera footage (**Board Review**), PO Mora said he had not originally heard § 87(2)(b) asking for business cards. PO Mora said that if he had heard § 87(2)(b) ask for business cards, he would have provided it for her. He then added that it was possible he would not have given § 87(2)(b) a business card because she was acting unpredictably.

In her statement to the CCRB (**Board Review 11**), PO O'Connor could not recall the events of this incident, which occurred 53 days prior to the interview. PO O'Connor had been assigned cell attendant, which is her regular assignment, so her duties included maintaining the interior of the cells. PO O'Connor was responsible for the welfare of the cells and the people inside. Once prisoners leave the cells for transport or release, PO O'Connor's duties end; she does not leave the cell area. PO O'Connor said that she does not usually aid in guiding a prisoner out of the cells and station house. After reviewing PO Pierre's body-worn camera footage (**Board Review 7**), PO O'Connor could identify herself in the video, but could not recall the incident. PO O'Connor could not account for why she pushed § 87(2)(b) or why she told her to "get the fuck out."

Administrative Code 14-174 (**Board Review 12**) details the identification of police officers and says that "an officer shall offer a business card to any person requesting identifying information, or provide such information verbally to such person and allow such person sufficient time to record such information when such officer does not have an adequate number of pre-printed business cards or hand-written cards on his or her person at the time of such law enforcement activity. ... An officer shall not be required to comply with this section where: ... Exigent circumstances require immediate action by such officer;" and "Such officer reasonably expects that he or she or any other person is in danger of physical injury or that there is an imminent risk of damage to property, or to forestall the imminent escape of a suspect or imminent potential destruction of evidence"

§ 87(2)(b) clearly asked PO Pierre for a business card and he did not provide it. § 87(2)(b) back and forth movements and yelling were characterized as unpredictable but were never dangerous or threatening. This behavior did not create a dangerous environment, nor did it involve any exigent circumstances that would preclude PO Pierre from providing a business card. § 87(2)(g)

PO Mora said that he was not involved in escorting § 87(2)(b) out of the stationhouse. PO Mora also said that he did not hear § 87(2)(b) ask for business cards during the incident. It is unclear from the body-worn camera footage how close PO Mora is standing to § 87(2)(b) and it is unclear if she is ever looking at or speaking to him directly. § 87(2)(g)

Patrol Guide Procedure 221-02 (**Board Review 13**) states that "When a member of the service must gain compliance, control, or custody of an uncooperative subject, the member should comply with Patrol Guide 221-01, "Force Guidelines" and: ... Utilize de-escalation techniques when appropriate and consistent with personal safety." The Mission and Values of the New York City Police Department, found in Patrol Guide Procedure 200-02 (**Board Review 14**), states that "The Department is committed to accomplishing its mission of protecting the lives and property of

all citizens of New York City by treating every citizen with compassion, courtesy, professionalism, and respect...”

In this incident, PO O’Connor was releasing § 87(2)(b) from custody and escorting her out of the station house. PO O’Connor was not trying to gain compliance or custody of § 87(2)(b) and did not need to gain control over her, since § 87(2)(b) was being released. § 87(2)(b) was upset and asking for business cards, but she was not making verbal or physical threats to the officers. PO O’Connor pushing § 87(2)(b) while § 87(2)(b) was asking officers to identify themselves after she had been released from custody § 87(2)(g)

Additionally, PO O’Connor telling § 87(2)(b) to “get the fuck out,” was an unnecessary use of profanity. PO O’Connor could have told § 87(2)(b) to leave the station house and there was no legitimate reason to introduce profanity into this command. § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party. **(Board Review 15)**
- PO O’Connor has been a member-of-service for 16 years and this is the first CCRB complaint to which she has been a subject. **(Board Review 16)**
- PO Pierre has been a member-of-service for 1 year and this is the first CCRB complaint to which he has been a subject. **(Board Review 17)**
- PO Mora has been a member of service for 7 years and has been a subject in 1 CCRB complaint and 1 allegation, which was not substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of October 3, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident **(Board Review 19)**.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 7

Investigator:	Julia Sapienza	Julia Sapienza	December 19, 2022
	Signature	Print Title & Name	Date

Squad Leader:	Manager Vanessa Rosen	December 20, 2022
	Signature	Date

Reviewer:

Signature

Print Title & Name

Date